

Smti Supriya Chakraborty vs Sri Avijit Choudhury on 22 January, 2025

Author: T. Amarnath Goud

Bench: T. Amarnath Goud

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HIGH COURT OF TRIPURA

_A_G_A_R_T_A_L_A_

Mat. App. No.03 of 2024

Mat. App. No.04 of 2024

Smti Supriya Chakraborty

.....Appellant

_V_E_R_S_U_S_

Sri Avijit Choudhury

....Respondent

For Appellant(s) : Ms. R. Purkayastha, Advocate.

For the respondent(s) : Mr. D. Bhattacharjee, Sr. Advocate.

Mr. S. Saha, Advocate.

HON'BLE MR. JUSTICE T. AMARNATH GOUD

HON'BLE MR. JUSTICE BISWAJIT PALIT

_F_I_N_A_L_O_R_D_E_R_

22.01.2025

Heard Ms. R. Purkayastha, learned counsel appearing for the appellant also heard Mr. D. Bhattacharjee, learned senior counsel assisted by Mr. S. Saha, learned counsel appearing for the respondents. Both these appeals are clustered together for disposal by a common judgment as the parties to these appeals are husband and wife.

[2] The present appeal being [Mat. App. No.03 of 2024] is filed under Section-28 of the Hindu Marriage Act, 1955 read with Section-19(1) of the Family Courts Act, 1984 challenging the validity and legality of the impugned judgment and decree dated 20.09.2023 passed by the learned Court of the Family Judge, Agartala, West Tripura, in connection with Case No. T.S. (RCR) 85 of 2016, whereby and whereunder, the learned Court below has dismissed the suit filed by the appellant for getting decree of restitution of her conjugal rights by way of bringing her husband back in her conjugal life.

[3] The facts in brief are that the marriage of the appellant had been solemnized with the respondent on 02.03.2012 as per Hindu rites and after observing all necessary formalities of Hindu marriage. After solemnization of marriage, the appellant after taking permission from the respondent and

other in laws came to Agartala and rejoined in the job. In the meantime, the appellant became pregnant. Thereafter, the respondent decided to go to Kolkata and as such he also took the appellant to Kolkata and at that time, she was three months pregnant. After reaching Kolkata, the respondent asked her to abort her pregnancy. On 09.04.2014 the appellant gave birth to a male child at Sarkar Nursing Home. After birth of their son, the appellant went to her matrimonial and started living there. But at that time also, the respondent also used to torture her both physically and mentally. In the last part of April, 2016 the respondent had driven the appellant from her matrimonial home after assaulting her. Since then, she has been residing in her parental home and no effort had been taken by the respondent at any point of time to take her back in her matrimonial home. And therefore this petition for restitution of conjugal rights has been filed by the appellant. Thereafter on hearing the arguments of both sides the learned Judge, Family Court by the impugned Judgment and decree dated 20.09.2023, has dismissed the suit filed by the appellant for getting a decree of restitution of her conjugal rights by way bringing back her husband in her conjugal life.

[4] After hearing the parties and having gone through the material evidence on record the learned Court below has observed as under:

"21. The wife-petitioner Smt Supriya Chakraborty has miserably failed to prove the desertion in his case against her husband-respondent Sri Avijit Chowdhury and so consequently she could not succeed to establish her case for restitution of conjugal rights against her husband-respondent to obtain a decree of RCR in this case. So the instant case filed by petitioner u/s 9 of the Hindu Marriage Act 1955 is hereby dismissed. Considering the relationship of the parties, there is no order as to costs.

22. Prepare decree accordingly within 15 days from the date of passing of this judgment."

[5] The appeal being [Mat. App. No.04 of 2024] filed under Section-28 of the Hindu Marriage Act, 1955 read with Section-19(1) of the Family Courts Act, 1984 challenging the validity and legality of the impugned judgment and decree dated 20.09.2023 passed by the learned Court of the Family Judge, Agartala, West Tripura, in connection with Case No. T.S. (RCR) 65 of 2020, whereby and whereunder, the learned Court below has dissolved the marriage of the appellant and the respondent by granting ddecree of divorce in favour of the husband respondent and against the wife appellant.

[6] The fact leading to this suit in short is that at the time of solemnization of marriage, the appellant was an employee of Rose Valley and she assured that since her brother in law was one of the Directors and as such she assured that she shall take transfer to Udaipur. But she did not take transfer and rather stopped visiting her matrimonial house after a certain point of time. The appellant inflicted mental torture upon the respondent and his parents including physical torture upon the respondent. Lastly in the month of April, 2015, the respondent took the appellant at Udaipur lastly.

[7] But after going there she started her wrong behaviour with his parents and abused them with slang language and informed the respondent that she is not interested to maintain any relationship with the respondent. Thereafter on hearing the arguments of both sides the learned Judge, Family Court by the impugned judgment and decree dated 20.09.2023, has dissolved the marriage of the appellant and the respondent by granting decree of divorce in favour of the husband respondent and against the wife appellant.

[8] After hearing the parties and having gone through the material evidence on record the learned Court below has observed as under:

"41. In the result, the petitioner-husband Sri Avijit Chowdhury has successfully established the case of different types of cruelty including desertion for granting decree of divorce against the respondent-wife Smt Supriya Chakraborty and so the prayer of the petitioner under Section- 13(1)(ia)&(ib) of the Hindu Marriage Act, 1955 is allowed. The judgment of the RCR case vide No. TS(RCR) 85/2016 also decided against the wife which is a plus point in this case in favour of the petitioner-husband for proving the cruelty and desertion by the wife. There shall be no marital bonding between petitioner-husband Sri Avijit Chowdhury and respondent- wife Smt Supriya Chakraborty from today i.e. from 20.09.2023 and hence the marriage between the petitioner and the respondent held on 02.03.2012 is hereby dissolved in between them.

It is made clear that the wife-respondent will continue to get monthly maintenance allowance of Rs.6,500/- per month (@Rs.3,500 for wife- respondent and @ Rs.3,000/- per month for the minor son till his majority) as awarded earlier in the case vide No. Civil Misc.95/2021. Petitioner is asked to pay the sum of Rs.6,500/- per month regularly in the Bank Account of the respondent-wife payable within 7th day of every English Calendar month.

42. The case is disposed of on contest."

[9] Being highly aggrieved by and dissatisfied with the same, the present appeals are preferred before this Court by the appellant.

[10] Today when the case is called, both the parties were represented with their respective counsel and have submitted before this Court that the matter is settled outside the Court and have prayed to grant divorce and accordingly, the divorce is granted subject to the following mutually agreed conditions thus:

(i) The husband shall pay Rs.10,00,000/- towards permanent alimony to the wife-appellant within four equal installments within a period of 6 months from today.

(ii) Both the parties shall take steps and also withdraw Civil Misc. 05 of 2023 along with any other cases, pending, if any filed against each other before any authority,

forum or Courts.

(iii) It is needless to observe that once the entire permanent alimony is paid by the husband to the wife, as indicated above, the order of payment of monthly maintenance shall stand automatically vacated.

(iv) The child (son) is in the custody of the mother and in the event, if the father of the child is interested to go and visit his son, the mother shall not prevent the meeting of son and father. In the event, if the father wishes to take his son with him for overnight stay for a day or two, he shall inform the mother of the child accordingly and ensure the safe custody of the child during the stay.

[11] With the above observations and directions, the present appeal stands disposed of. As a sequel, miscellaneous application, pending if any, shall stand closed.

B. PALIT, J

T. AMARNATH

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